

23GDCV00595 23GDCV00595

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Case Number: 23GDCV00595 Hearing Date: September 9, 2026 Dept: E

Hearing Date: 09/09/2026 – 8:30 a.m.

Case No. 23GDCV00595

Trial Date: 1/25/2027

Case Name: ANTONIO LUJAK v. FCA US LLC; et al.

TENTATIVE RULING ON MSJ

BACKGROUND

Plaintiff, Antonio

Lujak's, action stems from allegations that an automobile that he purchased from one of the Defendants crushed him against a wall, in part, due to a failed parking brake.

Plaintiff filed the original complaint on 3/23/2023.

On 9/25/2023,

Plaintiff filed the First Amended Complaint (FAC) against Defendants – (1) FCA US LLC; (2) Alfa Romeo USA; (3) Alfa Romeo of Glendale; (4) Fiat and Alfa Romeo of Santa Monica; and (5) Does 1-100.

On 10/22/2024, Doe

1 was named as Stellantis N.V.

On 5/14/2025, Doe 2

was named as RK Automotive, Inc., DBA Maserati of Santa Monica.

On 5/22/2025, Plaintiff

amended the incorrect name of Fiat and Alfa Romeo of Santa Monica to the correct name of Italian Motorcoach, Inc., DBA Fiat and Alfa Romeo of Santa Monica.

Moving Defendant

(Movant or Defendant or Italian Motorcoach), Italian Motorcoach Inc., DBA Maserati of Santa Monica, moves for summary judgment in its favor as to the FAC. [Movant indicates that it was erroneously sued as Italian Motorcoach Inc., DBA Fiat and Alfa Romeo of Santa Monica, i.e., Movant indicates that the amendment on 5/22/2025 improperly named Defendant.]

RELIEF

REQUESTED;

Defendant, Italian Motorcoach Inc., DBA

Maserati of Santa Monica, moves for summary judgment in its favor as to the FAC.

Procedural

Moving

Party: Defendant, Italian Motorcoach Inc., DBA Maserati of Santa Monica

Responding Party: Plaintiff,

Antonio Lujak

Moving Papers: Notice; Memorandum; Separate

Statement; Declaration of Tyler Kaminsky; Declaration of Roland Hoover;

Declaration of James Robeson; Notice of Lodgment

Opposing Papers: Opposition;

Plaintiff's Response to Separate Statement; Plaintiff's Objections to Evidence;

Declaration of Antonio Lujak; Declaration of Trevor Weinberg;

Reply Papers: Reply; Reply to

Plaintiff's Statement of Additional Material Facts; Evidentiary Objections to

LEGAL STANDARD MOTION SUMMARY JUDGMENT

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (CCP § 437c(p)(2).) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

"Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts

showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP §437c(p)(2).)

To

establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant’s showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

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TENTATIVE RULING

Preliminary

The Court notes that to the extent that Defendant is under the impression that it moved for summary adjudication, in the alternative to its motion for summary judgment, it did not.

Defendant’s notice and memorandum only indicated that Defendant was moving for summary judgment.

Since Defendant did not comply with CRC, rule 3.1350(b) & (d), the Court does not construe Defendant’s motion as seeking summary adjudication in the alternative.

Overall

Plaintiff’s FAC alleges two causes of action: (1) Negligence and (2) Strict Liability.

Defendant moves for summary judgment as to the entire FAC.

Defendant’s motion is not a model of clarity.

“To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused

(4) the plaintiff's damages or injuries." (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 663 citing Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 673.)

Although Plaintiff's first cause of action is for negligence, Defendant's MSJ is not entirely clear as to what element, or elements [duty, breach, causation, damages], Defendant is arguing that Plaintiff cannot establish.

With respect to the negligence cause of action, it appears that Defendant is arguing that Plaintiff cannot establish the elements of breach and causation. (See headings in Def. Memo. on pages 9-10.)

The Court does not find that Defendant meets its initial burden.

Defendant appears to frame Plaintiff's FAC in its own manner and ignores many of the allegations and theories of liability in Plaintiff's FAC.

For example, Defendant's memorandum states that, "Plaintiff contends that its routine maintenance of the Automobile was negligently performed in a manner that rendered the braking system defective and caused and/or contributed to the Automobile rolling and striking Plaintiff." (Def. Memo., p. 2, Ins. 14-17.)

"Instead, the only potentially applicable theory of liability against Italian Motorcoach is that it negligently performed maintenance or service on the Automobile, which Plaintiff implicitly contends caused or contributed to the alleged brake system failure and the subject incident." (Def. Memo, p. 8, Ins. 25-27 & p. 9, Ins. 1-2.)

Problematic with Defendant framing Plaintiff's FAC as Defendant sees fit is that Defendant ignores many of the allegations and theories of liability in Plaintiff's FAC.

For example, Defendant's memorandum and separate statement focuses on the conduct/services performed by Defendant in the repair of the vehicle and how its performance of those services were not

negligent/did not cause Plaintiff's injuries (See Def. Sep. Stmt., UMF 22-28); however, Defendant entirely fails to address the fact that Plaintiff also alleges that Defendant owed a duty to warn about dangerous conditions of the Automobile and that Defendant failed to warn about the defective brake system. (FAC, ¶¶ 29-31.)

"As the party moving for summary judgment, [Defendant] had the burden to show that it was entitled to judgment with respect to all theories of liability asserted by [Plaintiff]." (Lopez v. Superior Court (1996) 45 Cal.App.4th 705, 717.)

Here, since Defendant's moving papers entirely fail to address one of the theories of liability asserted by Plaintiff in the FAC – duty to warn – Defendant did not meet its initial burden.

Defendant's motion for summary judgment is DENIED. The Court will not address the second cause of action for strict liability because Defendant did not move for summary adjudication in the alternative.